

## Terms and Conditions of Sale

Version 2026. Valid from 01.01.2026

### DEFINITIONS

"Products": optoelectronic modules manufactured by LD4B per PO.

"Business Days": Monday-Friday, excluding Polish public holidays.

"Written": hardcopy, email or signed PDF.

### 1. Scope and Applicability

1.1 These Terms and Conditions of Sale ("T&C") govern all quotations, purchase orders, order confirmations, and deliveries of Products by LD4B Sp. z o. o. ("LD4B") to the Customer ("Customer").

1.2 The Customer's purchase terms and conditions apply only if expressly accepted by LD4B in writing, such as through specific inclusions or exclusions in the order confirmation. In case of conflict, these T&C prevail.

1.3 Any individual commercial or technical arrangements expressly agreed in writing by LD4B supersede these T&C.

### 2. Quotations, Purchase Orders and Binding Effect

2.1 All quotations issued by the LD4B are non-binding unless expressly stated otherwise.

2.2 A purchase order ("PO") submitted by the Customer constitutes a binding offer to purchase the products in accordance with the LD4B's quotation and these T&C.

2.3 Upon written acceptance of the PO by the LD4B, including by order confirmation, the PO together with these T&C shall constitute a binding transaction between the parties.

2.4 The LD4B treats each accepted PO as a firm production instruction. Any cancellation or modification requires prior written consent of the LD4B. Email notification from LD4B constitutes written consent.

2.5 In case of cancellation or modification, the Customer shall reimburse all costs incurred by the LD4B up to the date of cancellation, including material, production, labour and overhead costs.

2.6 Each PO shall contain complete and accurate company information. The Customer shall be responsible for the correctness of such data. The LD4B may request clarification in order to comply with applicable Polish law.

## 3. Technical Specifications and Product Characteristics

3.1 Product information on LD4B's website, catalogues, datasheets, and technical documents as well as details shared during ordering serves only as guidance for placing orders. Individual module characteristics will be specified in the test datasheet.

3.2 Based on the agreed configuration and options selected by the Customer, LD4B manufactures the products on a made-to-order basis. The LD4B does not maintain finished goods inventory. All products are manufactured exclusively upon receipt of an accepted PO.

3.3 The Customer remains solely responsible for verifying the suitability of the products for its intended application and system integration.

## 4. Prices and Payment Terms

4.1 Unless otherwise agreed, prices are stated in LD4B's quotation on an FCA Warsaw, Poland (Incoterms® 2020) basis.

4.2 Invoices are payable within the terms stated in the quotation (e.g., prepayment, NET30).

4.3 For prepayments, manufacturing begins only after LD4B receives full payment. LD4B encourages prompt payment to avoid production delays.

4.4 If delivery is on CPT or DAP terms, the final invoice price will reflect applicable shipping and handling costs.

4.5 LD4B may suspend production or deliveries for overdue payments.

4.6 For repeated payment delays or if the Customer's creditworthiness deteriorates, LD4B reserves the right—upon prior notice—to require advance payment for future orders.

## 5. Delivery, Risk, and Acceptance

5.1 Delivery will follow the agreed Incoterms® 2020 shipping terms.

5.2 Estimated shipping dates appear in the order confirmation. LD4B may adjust these dates due to component availability, production constraints, or other operational reasons.

5.3 Risk of loss or damage passes to the Customer per the agreed Incoterms® 2020 shipping terms.

5.4 The Customer must inspect products within 10 (ten) business days of delivery.

5.5 The Customer must notify LD4B in writing of any defects, shortages, or non-conformities within this period. Otherwise, the products are deemed accepted.

## 6. Warranty, After-Sales Support, and RMA Procedure

6.1 LD4B warrants that products are free from material and manufacturing defects for 12 (twelve) months from delivery or 5,000 hours of operation—whichever occurs first.

6.2 This warranty excludes damage from improper use, modification, incorrect installation, disassembly, or use outside specifications.

6.3 Return defective products to LD4B for failure analysis per LD4B's RMA procedure. No replacement or repair will occur before analysis is complete, unless otherwise agreed.

6.4 For valid warranty claims, LD4B will—at its discretion—repair or replace the defective product.

6.5 Refunds are available only if repair or replacement is not feasible.

6.6 Submit warranty claims in writing, including product identification, serial numbers, defect description, and supporting evidence (photos, videos).

6.7 Samples, prototypes, and evaluation units are excluded from warranty unless agreed otherwise.

## 7. Limitation of Liability

7.1 To the fullest extent permitted by applicable law, LD4B shall not be liable for any indirect, incidental, consequential, special, or punitive damages—including lost profits, lost revenue, lost production, lost business, lost data, or third-party penalties—regardless of the legal basis (contract, tort, or otherwise).

7.2 LD4B's aggregate liability arising out of or relating to any order, delivery, or transaction shall in no event exceed the net price of the products directly giving rise to the claim.

7.3 These limitations do not apply to willful misconduct, gross negligence, fraud, or cases where liability cannot be limited or excluded under mandatory provisions of applicable law (including Polish Civil Code and EU directives, e.g., product liability).

7.4 The remedies set forth in Section 6 are the Buyer's sole and exclusive remedies for any product defects, non-conformities, or contract breaches.

## 8. Suspension and Termination

8.1 LD4B may suspend or terminate its performance if the Customer commits a material breach, particularly non-payment, or breaches export compliance.

8.2 If the Customer becomes insolvent, suspends payments, enters restructuring proceedings, or faces similar measures, LD4B may terminate the transaction with immediate effect.

## 9. Compliance and Export Control

9.1 The Customer must comply with all applicable export control, customs, and sanctions regulations.

9.2 The Customer shall not resell or re-export products in violation of applicable laws.

9.3 The Customer shall indemnify and hold LD4B harmless against any claims arising from the Customer's non-compliance.

## 10. Governing Law and Dispute Resolution

10.1 These T&C and all transactions are governed by the substantive laws of Poland, excluding the UN Convention on Contracts for the International Sale of Goods (CISG).

10.2 All disputes shall be finally settled by arbitration under the Rules of the Court of Arbitration at the Polish Chamber of Commerce in Warsaw, with seat in Warsaw, Poland, and English as the language of arbitration.

## 11. Force Majeure

11.1 Neither party liable for non-performance due to events beyond reasonable control (acts of God, war, pandemics, government actions, supply shortages, strikes excluding own employees).

11.2 Affected party notifies other promptly. Performance suspended until event ends.

11.3 If delay >90 days, either party may terminate without liability by written notice.

## 12. Final Provisions

12.1 If any provision of these T&C is or becomes invalid or unenforceable, the remaining provisions remain in full force and effect.

12.2 Amendments or supplements to these T&C require written agreement by both parties.